

JUDICIARY PRIME

LEARN. PRACTICE. SUCCEED.

9811187180

RAJASTHAN APO MAINS TEST SERIES 2026

Test No. 03 — Paper-I : Law

Protection of Children from Sexual Offences Act, 2012

Date : 10 October 2026

Total Questions : 15

IMPORTANT INSTRUCTIONS

1. Attempt all questions.
2. The question paper is divided into parts. The marks of each question and the number of words in which it is to be answered are indicated at the beginning of each part.
3. Candidates should not write the answers beyond the prescribed limit of words; failing this, marks may be deducted.
4. Write each answer only in the space provided below the question. An answer written outside the space provided will not be assessed.
5. Every question is to be answered with reference to the Protection of Children from Sexual Offences Act, 2012.
6. Use of correction pen, whitener or highlighter is not permitted.

(Q.No. 1 to 10)

Note : Attempt all questions. Answer each question in **30** words. Each question carries **5** marks.

1. Does a digital or computer-generated image which is not of an actual child fall within 'child pornography' under the Protection of Children from Sexual Offences Act, 2012? State the provision. [5]

2. State the provision as to the punishment for penetrative sexual assault committed upon a child below sixteen years of age, and the purpose for which the fine imposed is to be utilised. [5]

3. In what circumstances does penetrative sexual assault committed by a police officer amount to aggravated penetrative sexual assault under the Protection of Children from Sexual Offences Act, 2012? [5]

4. Sexual harassment upon a child is committed only where the person acts 'with sexual intent'. How is the question of sexual intent to be determined? State the provision. [5]

-
5. State the provision as to the punishment for storage of pornographic material involving a child for a commercial purpose, and distinguish it from storage coupled with failure to delete, destroy or report. [5]

6. When is a person said to 'instigate' the doing of an offence, and when is a person who transports a child by abuse of a position of power said to aid it? State the provisions. [5]

7. Is a child liable to punishment for failure to report an offence, or for making a false complaint or providing false information, under the Protection of Children from Sexual Offences Act, 2012? State the provisions. [5]

-
-
8. State the provision as to the place at which, and the police officer by whom, the statement of a child is to be recorded, and the restriction upon detention of a child. [5]

-
-
-
-
-
-
-
-
-
-
9. In respect of which offences does the Special Court presume that the accused has committed the offence? What standard of proof must the accused meet to displace a presumption of culpable mental state? [5]

-
-
-
-
-
-
-
-
-
-
10. Where a question arises before the Special Court whether a person is a child, how is it to be determined, and what is the effect of subsequent proof that the age so determined was incorrect? [5]
-
-
-
-
-
-
-
-

(O.No. 11 to 15)

- : Attempt all questions. Answer each question in **75** words. Each question carries **10** marks.

JUDICIARY PRIME

-
-
-
12. What suggestions have been made by the Supreme Court in *Just Rights for Children Alliance v. S. Harish and others*, A.I.R. 2024 S.C. 5531 regarding Section 15 of the Protection of Children from Sexual Offences Act, 2012? Discuss. [10]

JUDICIARY PRIME

- 13. Who is bound to report the commission of an offence under the Protection of Children from Sexual Offences Act, 2012, and to whom? State the obligation of media, studio and photographic facilities to report cases, and the procedure to be followed by the media.** [10]

14. Which courts are competent to try offences under the Protection of Children from Sexual Offences Act, 2012? Explain the procedure and powers of the Special Court, including its power to direct payment of compensation. [10]

- 15. Explain the provisions made for the protection of the child at the trial — the period for recording of evidence and disposal of the case, the child not seeing the accused while testifying, trial in camera, and the right to take assistance of a legal practitioner. [10]**

JUDICIARY PRIME